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ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

12/02/2024
Clerk of the Court
BY: SAHAR ENAYATI
Deputy Clerk

IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO, UNLIMITED JURISDICTION

CGC-24-620191

TANNER PIKOP

Plaintiff,

vs.

SF MULTIFAMILY POOLS 2-3 (B) OWNER LLC,
SF MULTIFAMILY III PROPERTY OWNER
LLC; BRICK AND TIMBER, INC., aka BRICK +
TIMBER, INC., *a California Corporation*,
MISSION ROCK RESIDENTIAL CALIFORNIA,
Inc. and DOES 1 through 50, inclusive;

Defendants.

COMPLAINT FOR DAMAGES

1. VIOLATION OF THE RENT
ORDINANCE, CHAPTER 37 OF THE
SAN FRANCISCO ADMINISTRATIVE
CODE – COUNT ONE WRONGFUL
ENDEAVOR TO RECOVER
POSSESSION IN VIOLATION OF SAN
FRANCISCO RENT ORDINANCE
2. VIOLATION OF THE RENT
ORDINANCE, CHAPTER 37 OF THE
SAN FRANCISCO ADMINISTRATIVE
CODE – COUNT TWO TENANT
HARASSMENT (AGAINST ALL
DEFENDANTS)
3. CONSTRUCTIVE EVICTION
(AGAINST ALL DEFENDANTS)
4. BREACH OF THE IMPLIED
WARRANTY OF
HABITABILITY (AGAINST ALL
DEFENDANTS)
5. BREACH OF THE STATUTORY
WARRANTY OF
HABITABILITY (AGAINST ALL
DEFENDANTS)
6. NUISANCE (AGAINST ALL
DEFENDANTS)
7. BREACH OF THE COVENANT OF
QUIET ENJOYMENT (AGAINST ALL
DEFENDANTS)

8. NEGLIGENCE (AGAINST ALL DEFENDANTS)
9. NEGLIGENT VIOLATION OF STATUTORY DUTY (AGAINST ALL DEFENDANTS)
10. INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS (AGAINST ALL DEFENDANTS)
11. BREACH OF CONTRACT (AGAINST ALL DEFENDANTS)

1. Plaintiff TANNER PIKOP ("Plaintiff") hereby complains against SF MULTIFAMILY POOLS 2-3 (B) OWNER LLC, SF MULTIFAMILY III PROPERTY OWNER LLC; BRICK AND TIMBER, INC., aka BRICK + TIMBER, INC., a California Corporation, MISSION ROCK RESIDENTIAL CALIFORNIA, Inc. (collectively, "Defendants") and alleges as follows:

PARTIES. JURISDICTION & VENUE

2. Plaintiff TANNER PIKOP is an individual over the age of 18 residing in California.
3. Plaintiff qualifies as a "person who hires a dwelling" (i.e. tenant) as defined by California Civil Code § 1940 and avails himself of all the rights, remedies and benefits contained therein. Plaintiff executed a lease for the Premises with Defendant's predecessor in interest on or around taking possession in 2006. Plaintiff does not retain possession of the written lease agreement, but on information and belief

1 it contains a provision providing for attorney fees and costs to the prevailing party of any dispute arising
2 out of the lease agreement

3 4. By way of Plaintiff's long-term tenancy and regular monthly payment of rent, Plaintiff was
4 also a common law tenant of the Property.

5 5. The Property subject of this complaint is a multi-unit residential building in the City and
6 County of San Francisco with the address 1330 Union Street, San Francisco, CA 94109 (hereinafter the
7 "Subject Property").

8 6. Defendant SF MULTIFAMILY POOLS 2-3 (B) OWNER LLC is a Delaware Limited
9 Liability Company. registered with the State of California and has been doing business in the City and
10 County of San Francisco, California. Defendant SF MULTIFAMILY POOLS 2-3 (B) OWNER LLC at
11 times relevant herein was the owner and landlord of the Subject Property.

12 7. Defendant SF MULTIFAMILY III PROPERTY OWNER LLC is a Delaware Limited
13 Liability Company. registered with the State of California and has been doing business in the City and
14 County of San Francisco, California. Defendant SF MULTIFAMILY III PROPERTY OWNER LLC at
15 times relevant herein was the owner and landlord of the Subject Property.

16 8. Defendant MISSION ROCK RESIDENTIAL CALIFORNIA, Inc. is a California
17 Corporation and has been doing business in the City and County of San Francisco, California. Plaintiff is
18 informed and believes and thereon alleges that Defendant MISSION ROCK RESIDENTIAL
19 CALIFORNIA, Inc, had been authorized to and managed the subject property on behalf of the other
20 Defendants. Defendant MISSION ROCK RESIDENTIAL CALIFORNIA, Inc performed management
21 functions at the subject property and the actions alleged undertaken by Defendant BRICK & TIMBER
22 INC were done within the scope of their authority to manage said Subject Property.

23 9. Defendant BRICK & TIMBER INC is a California Corporation and has been doing
24 business in the City and County of San Francisco, California. Plaintiff is informed and believes and
25 thereon alleges that Defendant BRICK & TIMBER INC, had been authorized to and managed the subject
26 property on behalf of the other Defendants. Defendant BRICK & TIMBER INC performed management
27 functions at the subject property and the actions alleged undertaken by Defendant BRICK & TIMBER
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INC were done within the scope of their authority to manage the Subject Property.

10. The true names and capacities of Defendants sued herein as Does 1 through 50, inclusive, whether individual, corporate, associate, or otherwise, are unknown to Plaintiff who therefore sues such Defendants by such fictitious names. When their true names and capacities are ascertained, Plaintiff will amend this Complaint by asserting their true names and capacities herein. Plaintiff is informed and believes, and thereon alleges, that each of the fictitiously named Defendants is responsible in some manner for the occurrences herein alleged, and that Plaintiff's damages as herein alleged were proximately caused by those Defendant.

11. Plaintiff is informed and believes and thereon alleges that in doing the things alleged herein, the DEFENDANTS, and each of them, including without limitation the Doe Defendants, were acting as the agents, employees and/or principals of their co-defendants, and were generally acting within the course and scope of their agency and employment.

12. Plaintiff is informed and believes and thereupon alleges that Defendants were Plaintiff's landlord or agent of same and Plaintiff was the tenant of the Defendants, as "landlord" and "tenant" are defined under California common law, under California Code of Civil Procedure §1161 et seq., under California Civil Code §1980, and as defined by San Francisco Residential Rent Ordinance Section 37.2 C

13. This Court has personal jurisdiction over Defendants because Defendants engaged in wrongful conduct in the State of California, which caused harm to Plaintiff.

14. At all pertinent times, Plaintiffs tenancy at the Subject Property was covered by the San Francisco Residential Rent Ordinance.

15. Venue is proper in this Court because Defendants rented real property to Plaintiff in this county and thus a substantial portion of the occurrences related to this action occurred in this county. Cal. Civ. Proc. Code § 395.

16. The amount in controversy exceeds the jurisdictional minimum for this court.

17. Plaintiff leased the Unit from on or around August 2006 until on or about September 2024 pursuant to a written lease agreement. Plaintiff no longer possesses a copy of the lease agreement, but on information and belief it contains an attorney fee and cost provision for claims arising out of breaches of

1 the lease agreement, such as this here complaint.

2 **SUBSTANTIVE ALLEGATIONS**

3 18. Plaintiff was a residential tenant in a multi-unit residential rental building located at 1330
4 Union Street, San Francisco, CA 94109 (the “Subject Property”), residing in unit No. One, a two bedroom,
5 one bath ground floor unit. (The “Subject “Unit”).

6 19. Pursuant to the Agreement, Plaintiff was being charged a monthly rent of approximately
7 \$2,032.00/month at the time he was forced to abandon the Premises.

8 20. Pursuant to the Agreement, Defendants, among other things, expressly and impliedly
9 warranted that the Property and Premises were and would remain habitable and that Defendants would
10 maintain and repair the Property and Premises in such a manner as to keep them habitable and safe to
11 occupy.

12 21. Defendants knew or should have known that they hold the duty to maintain a legal premises
13 and failing that duty would cause the property to be operated beneath the habitability level as required by
14 law and would result in emotional, mental, physical, and economic damages that are the subject of this
15 complaint.

16 22. Pursuant to the Agreement, Defendants, among other things, expressly and impliedly
17 warranted that Defendants would not harass or intimidate Plaintiff or interfere with Plaintiff’s quiet
18 enjoyment of the Property and Premises in such a manner as to force or try to force Plaintiff to relinquish
19 his tenancy.

20 23. Defendants knew or should have known that they hold the duty to not harass or intimidate
21 Plaintiff or interfere with Plaintiff’s quiet enjoyment of the Property and Premises, and that failing that
22 duty would result in emotional and other damages that are the subject of this complaint.

23 24. Upon taking possession of the Premises, Plaintiff observed none of the structural defects
24 alleged herein. However, in the Spring of 2024 Plaintiff discovered the defects, and from then on the
25 Premises contained these defects during the remainder Plaintiff’s tenancy. Plaintiff repeatedly requested
26 that the biological contamination, water intrusion, and excessively damp environment to be remediated
27 throughout the last six months of his tenancy. However, Defendants only conducted superficial, cursory
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1 cleanings of the Premises, which were inadequate to remedy the substantial contamination instead of
2 conducting a permanent remediation of the contamination. As a result, Plaintiff permanently vacated the
3 Subject Premises on or around September 11, 2024.

4 25. On information and belief, the Premises has contained biological contamination from at
5 least the Spring of 2024 until the date Plaintiff was forced to vacate his home. Plaintiff had regularly
6 submitted repeated work orders for Defendants to clean the biological contamination from the Premises.
7 Plaintiff had continually, and repeatedly, stated that superficial cleanings are not sufficient to remedy the
8 problem, and Defendants refused to fulfill Plaintiff's requests for a permanent remediation of the
9 biological contamination.

10 26. Plaintiff reasonably believed that the primary cause of the biological contamination was
11 the failure to properly remediate after poor construction allowed for several leaks and flooding to occur
12 after rain showers.

13 27. Defendants were, at all times, fully aware that they, acting as managers and operators at
14 the Property, had failed to maintain it to the standard of habitability as required by law. In addition to the
15 foregoing substandard and defective conditions, Defendants engaged in the practice of tenant harassment.

16 28. Plaintiff did not cause or contribute to the substandard conditions described herein and had
17 fulfilled his obligations as a tenant.

18 29. Each Defendant had actual and constructive knowledge of these conditions at the Premises
19 and the Property and failed to cure the conditions listed herein.

20 30. Throughout his occupancy of the Premises, Plaintiff repeatedly notified Defendants and/or
21 their agents, both orally and in writing, of the dangerous conditions listed above, among others, and
22 requested that Defendants have them repaired. Despite these requests, Defendants, and each of them,
23 failed and/or refused to repair the conditions and/or have done so in a negligent and/or unreasonable
24 fashion and in bad faith.

25 31. Said defective conditions were not caused by the wrongful or abnormal use of the Subject
26 Unit by Plaintiff or anyone acting under Plaintiff's authority.

27 32. Defendants exhibited wanton and malicious disregard for Plaintiff's health and wellbeing
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1 by failing to cure these dangerous conditions. Defendants recklessly ignored Plaintiff's complaints
2 concerning biological contamination, resulting in physical and emotional distress as well as economic
3 injury to Plaintiff.

4 33. Plaintiff began to experience symptoms consistent with exposure to indoor dampness and
5 biological contamination, including respiratory ailments, shortness of breath, wheezing, itchy/watery eyes,
6 and headaches. These symptoms persisted and intensified during the final six months of Plaintiff's
7 tenancy and resolved upon permanently vacating.

8 34. On information and belief, these symptoms were caused by Defendants' failure to meet its
9 contractual and statutory obligations as Plaintiff's landlord.

10 35. Defendants did not perform their obligations under the rental agreement in ways that
11 include, but are not limited to the following:

- 12 a. Breached the warranty of habitability by not making the needed repairs;
- 13 b. Reduced or attempted to reduce housing services without making a commensurate
14 reduction in rent;
- 15 c. Failed to maintain the Premises in a safe and habitable condition; and
- 16 d. Denied Plaintiff's peaceable quiet enjoyment of the Premises, free from harassment.

17 36. As a direct and proximate result of the above conduct and resultant conditions in the
18 Premises, Plaintiff has suffered and continues to suffer mental and emotional pain and distress, including,
19 but not limited to, embarrassment, humiliation, discomfort, exacerbation and annoyance, all to their
20 general damage in an amount to be proven at trial.

21 37. Upon permanently vacating his home, Plaintiff's decline in health abated and fully resolved
22 within months of concluding his exposure to the untenable, vermin infested, substandard and unsanitary
23 conditions in the unit which Defendants refused to resolve.

24 38. At all times relevant to this complaint, Plaintiff paid the entirety of his rent, which
25 constituted overpayments due to the reduction in services due to the substandard, untenable and
26 unsanitary conditions in the unit.

27 39. As a direct and proximate result of Defendants' acts and failures to act as set forth herein,
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1 Plaintiff suffered physical injuries and pain, including but not limited to respiratory problems, fatigue, and
2 other ailments resulting from consistent exposure to the excessively damp environment.

3 40. Defendants were at all times fully aware that they, acting as managers and operators at the
4 Property, had failed to maintain it to the standard of habitability as required by law. In addition to the
5 foregoing substandard and defective conditions, including water intrusion and vermin infestations, the
6 apartment lacked other necessary characteristics of a habitable dwelling.

7 41. Neither Plaintiff, nor any other occupant of the Subject Premises, caused or contributed to
8 the substandard conditions described herein and has fulfilled his obligations as a tenant at all times.

9 42. Defendants endeavored to recover possession of the Premises in bad faith through unlawful
10 harassment and other means, including but not limited to the following actions:

- 11 - Failing to provide a habitable dwelling free from defects and vermin;
- 12 - Continuously failing to maintain and repair severe habitability violations in the unit;
- 13 - Failing to maintain and repair the premises in a habitable condition, including failure to repair
14 and replace defective wiring, plumbing, flooring, windows, degraded surfaces, and walls;
- 15 - Failing to prevent water leakage and vermin infestations into the Premises;
- 16 - Permitting continuous, visible growth of biological surface contamination;
- 17 - Failing to perform adequate maintenance and/or rehabilitation;
- 18 - Failing to make the Premises compliant with building codes;
- 19 - Failing to provide adequate ventilation;
- 20 - Failing to provide heat as required by code;
- 21 - Failing to offer reduction in rent concomitant with a significant reduction in services;
- 22 - Failing to offer relocation payments in accordance with applicable law;
- 23 - Refusing to perform effective repairs of the severely dilapidated conditions which rendered
24 the Premises uninhabitable;
- 25 - Demanding rent while the Premises were in a condition of severe dilapidation and disrepair;
- 26 - Demanding rent in excess of that permitted under the San Francisco Administrative Code;
- 27 - Seeking to force Plaintiff to vacate the Premises by permitting the Premises to fall into and/or
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1 remain in a condition that was a threat to the health and safety of Plaintiff, in an effort to
2 recover the rent-controlled apartment;

- 3 - Removing services in bad faith after failing to offer relocation assistance, with ulterior
4 motives and dishonest intent;
- 5 - Engaging in other harassing conduct against Plaintiff, including but not limited to entering the
6 Premises without proper notice, failing to complete repairs in a timely and professional
7 manner, and reducing housing services in express retaliation for notice of substandard
8 conditions.

9 43. Throughout his occupancy of the Subject Premises, Plaintiff repeatedly notified
10 Defendants, both orally and in writing, of the defective and dangerous conditions listed above, among
11 others, and requested that Defendants have them repaired. Despite these requests, Defendants, and each
12 of them, failed and/or refused to repair the conditions, and/or have done so in a negligent and/or
13 unreasonable fashion and in bad faith.

14 44. Defendants exhibited wanton and blatant disregard of these unsanitary and uninhabitable
15 conditions, as most were manifestly visible to the untrained observer.

16 45. As a direct and proximate result of the above acts by Defendants, and each of them, Plaintiff
17 paid excessive rent for the Premises during the time Defendants were his landlords.

18 46. As a direct and proximate result of the above acts by Defendants, and each of them, Plaintiff
19 lost possession of the Premises and suffered loss of use of the Premises to his general damages in an
20 amount to be proven at trial.

21 47. As a direct and proximate result of the above conduct, Plaintiff has suffered and continues
22 to suffer the loss of use of the Premises, and is entitled to attorney fees, and other special damages.

23 48. As a direct and proximate result of the above-mentioned conduct, Plaintiff has suffered and
24 continues to suffer damages, all in an amount to be proven.

25 49. Defendants' conduct was without right or justification and done for the purpose of
26 depriving Plaintiff of his right to possession of the Premises. Defendants engaged in the above-described
27 conduct with the knowledge that the conduct was without right or justification and without regard for the
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fact that it would cause injury to Plaintiff, notwithstanding their obligation to comply with applicable statutes providing for quiet possession and enjoyment of the Premises.

FIRST CAUSE OF ACTION

VIOLATION OF THE RENT ORDINANCE, CHAPTER 37 OF THE
SAN FRANCISCO ADMINISTRATIVE CODE – COUNT ONE
WRONGFUL ENDEAVOR TO RECOVER POSSESSION
IN VIOLATION OF SAN FRANCISCO RENT ORDINANCE
(AGAINST ALL DEFENDANTS)

50. Plaintiff realleges and incorporates each of the foregoing allegations as though fully set forth herein.

51. The Rent Ordinance prohibits a landlord from recovering possession of a rental unit except as provided by Section 37.9, subsections (a) and (b).

52. Defendants' acts and omissions alleged herein was part of a plan to unlawfully cause Plaintiff to vacate their rent-controlled tenancy in a manner not permitted under Section 37.9(a) of the Rent Ordinance.

53. As described herein, Defendants endeavored to recover, and in fact recovered, possession of the Subject Unit in a manner not permitted by and in violation of the San Francisco Administrative Code § 37, *et. seq.* ("Rent Ordinance").

54. Plaintiff vacated the Subject Unit due to Defendants' failure to properly maintain the Subject Unit, and failure to repair and remediate the water intrusion, and window leaks, moisture, airborne and surface contaminants in the unit and therefore, Defendants recovered possession of the Subject Unit in a manner that was not in good faith and with ulterior reason, and without honest intent.

55. As a direct and proximate result of the conduct of the Defendants, Plaintiff suffered and continues to suffer the following damages: personal injury and substantial discomfort; moving expenses; loss of use and enjoyment of the property; rent differential damages; fear of loss of housing; actual loss of housing by constructive eviction; personal property damage; loss of personal property; storage costs; and annoyance and emotional distress, all to her detriment, in an amount to be determined at trial and in excess of the jurisdictional limit of this Court. Pursuant to Section 37.9(f) of the Rent Ordinance, Plaintiff is entitled to recover monetary damages of not less than three times actual damages, as well as recovery of

1 reasonable attorney's fees and costs.

2 56. The conduct of the Defendants alleged herein was oppressive, fraudulent, malicious, and
3 done with conscious disregard of Plaintiff's rights as a tenant. Plaintiff is therefore entitled to recover
4 punitive damages against the Defendants in an amount to be determined at trial.

5 **SECOND CAUSE OF ACTION**

6 VIOLATION OF THE RENT ORDINANCE, CHAPTER 37 OF THE SAN FRANCISCO
7 ADMINISTRATIVE CODE – COUNT TWO
8 TENANT HARASSMENT
(AGAINST ALL DEFENDANTS)

9 57. Plaintiff realleges and incorporates each of the foregoing allegations as though fully set
10 forth herein.

11 58. At all pertinent times Plaintiff's tenancy at the Subject Unit was covered by the rent control
12 limitations, eviction control protections, as well as the anti-harassment provisions of the Rent Ordinance.

13 59. Plaintiff is informed and believes and thereby alleges that Defendants' actions, as set forth
14 herein, were done in bad faith, and said actions included but were not limited to, interfering with Plaintiff's
15 right to quiet use and enjoyment of the Subject Unit; interrupting and failing to provide housing services;;
16 failing to perform repairs and maintenance required by contract, or by State, County, or local housing,
17 health or safety laws; failing to exercise due diligence in completing repairs and maintenance to the
18 Subject Unit and Subject Property; and attempting to influence Plaintiff to vacate the Subject Unit through
19 coercion and/or intimidation. In pursuing these acts and omissions, Defendants had the unlawful
20 intention, ulterior motive and dishonest intent to force Plaintiff to vacate their tenancy in violation of the
21 Rent Ordinance, including but not limited to Section 37.9, which provides the legal just causes for eviction.
22 These actions violated the Rent Ordinance, including but not limited to Section 37.10B, which prohibits
23 landlord harassment of tenants.

24 60. Defendants were successful in their scheme as set forth above, and Plaintiff vacated the
25 Subject Unit as a result of Defendants' harassment and retaliation alleged herein. In so doing, Defendants
26 have violated Section 37.10B of the Rent Ordinance.

27 61. In performing the acts and omissions described herein, the Defendants benefited from the
28 scheme by achieving the removal of a long-term rent-controlled tenant from the Subject Unit, achieving

1 an economic benefit for all of Defendants.

2 62. Plaintiff vacated the Subject Unit based upon the bad faith and harassing acts and omissions
3 of the Defendants described herein, and therefore, Defendants recovered possession of the Subject Unit in
4 bad faith and with ulterior reason, and without honest intent.

5 63. As a direct and proximate result of the conduct of the Defendants, Plaintiff suffered and
6 continues to suffer the following damages: personal injury and substantial discomfort; moving expenses;
7 loss of use and enjoyment of the property; rent differential damages; fear of loss of housing; actual loss of
8 housing by constructive eviction; personal property damage; loss of personal property; storage costs; and
9 annoyance and emotional distress, all to his detriment, in an amount to be determined at trial and in excess
10 of the jurisdictional limit of this Court. In addition, Plaintiff is entitled to recover monetary damages of
11 not less than three times their actual damages (including the trebling of their emotional distress damages
12 as Defendants acted in reckless disregard of Plaintiff's rights) as well as recovery of their reasonable
13 attorney's fees and costs.

14 64. The conduct of the Defendants alleged herein was oppressive, fraudulent, malicious, and
15 done with conscious disregard of Plaintiff's rights as a tenant. Plaintiff is therefore entitled to recover
16 punitive damages against the Defendants in an amount to be determined at trial.

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18 **THIRD CAUSE OF ACTION**
19 **CONSTRUCTIVE EVICTION**
20 **(AGAINST ALL DEFENDANTS)**

21 65. Plaintiff re-alleges and incorporates all prior allegations as though fully set forth herein.

22 66. Due to the above-stated acts or omissions of Defendants, and the intolerable conditions of
23 the Premises, which rendered the Premises unfit for use as a residence, Plaintiff was compelled to abandon
24 the Premises, which Plaintiff did on or about September 11, 2024.

25 67. Plaintiff abandoned the Premises after determining that DEFENDANTS would not take
26 the necessary and requested actions to maintain and repair the Premises.

27 68. As a proximate result of the Defendants' acts of constructive eviction as herein alleged,
28 Plaintiff has suffered general damages in an amount to be proven at trial.

1 69. Plaintiff is informed and believes and thereby alleges that Defendants' actions, as set forth
2 herein, were done in bad faith, and said actions included but were not limited to, interfering with Plaintiff
3 right to quiet use and enjoyment of the Subject Unit; interrupting and failing to provide housing services;;
4 failing to perform repairs and maintenance required by contract, or by State, County, or local housing,
5 health or safety laws; failing to exercise due diligence in completing repairs and maintenance to the
6 Subject Unit and Subject Property; and attempting to influence Plaintiff to vacate the Subject Unit through
7 coercion and/or intimidation. In pursuing these acts and omissions, Defendants had the unlawful
8 intention, ulterior motive and dishonest intent to force Plaintiff to vacate their tenancy in violation of the
9 Rent Ordinance, including but not limited to Section 37.9, which provides the legal just causes for eviction.
10 These actions violated the Rent Ordinance, including but not limited to Section 37.10B, which prohibits
11 landlord harassment of tenants.

12 70. Defendants were successful in their scheme as set forth above, and Plaintiff vacated the
13 Subject Unit as a result of Defendants' harassment and retaliation alleged herein. In so doing, Defendants
14 have violated Section 37.10B of the Rent Ordinance.

15 71. In performing the acts and omissions described herein, the Defendants benefited from the
16 scheme by achieving the removal of a long-term rent-controlled tenant from the Subject Unit, achieving
17 an economic benefit for all of Defendants.

18 72. Plaintiff vacated the Subject Unit based upon the bad faith and harassing acts and omissions
19 of the Defendants described herein, and therefore, Defendants recovered possession of the Subject Unit in
20 bad faith and with ulterior reason, and without honest intent.

21 73. As a direct and proximate result of the conduct of the Defendants, Plaintiff suffered and
22 continues to suffer the following damages: personal injury and substantial discomfort; moving expenses;
23 loss of use and enjoyment of the property; rent differential damages; fear of loss of housing; actual loss of
24 housing by constructive eviction; personal property damage; loss of personal property; storage costs; and
25 annoyance and emotional distress, all to his detriment, in an amount to be determined at trial and in excess
26 of the jurisdictional limit of this Court. In addition, Plaintiff is entitled to recover monetary damages of
27 not less than three times their actual damages (including the trebling of their emotional distress damages
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as Defendants acted in reckless disregard of Plaintiff's rights) as well as recovery of their reasonable attorney's fees and costs.

74. The conduct of the Defendants alleged herein was oppressive, fraudulent, malicious, and done with conscious disregard of Plaintiff's rights as a tenant. Plaintiff is therefore entitled to recover punitive damages against the Defendants in an amount to be determined at trial.

FOURTH CAUSE OF ACTION
BREACH OF THE IMPLIED WARRANTY OF HABITABILITY
(AGAINST ALL DEFENDANTS)

75. Plaintiff re-alleges and incorporates all prior allegations as though fully set forth herein.

76. At all relevant times herein, numerous defective living conditions have existed, and continue to exist, at the Property. These defective conditions include but are not limited to:

- a. Failing to provide a habitable dwelling free from defects;
- b. Continuously failing to maintain and repair habitability defects in the Premises and Property;
- c. Failing to maintain and repair the Premises in a habitable condition, including failure to provide proper ventilation;
- d. Reducing housing services without a commensurate reduction in rent;
- e. Failing to provide adequate relocation services while purported necessary repairs were being unduly delayed and the Premises were unsafe for habitation.

77. The defective conditions stated above constitute violations of state and local housing laws and pose severe health, safety and fire hazards. The defective conditions materially affected Plaintiff's living conditions.

78. Defendants had actual and constructive notice of each of the defective conditions described above at all relevant times herein. Despite such notice, Defendants failed to take the steps necessary to repair said conditions at all times relevant herein.

79. Plaintiff paid Defendants monthly rent during the time she occupied the Premises.

80. Plaintiff did nothing to cause, create or contribute to the existence of the defective

conditions stated above.

81. By Defendants' breach of the warranty of habitability, Defendants breached a duty imposed on all residential landlords by state and local law. In failing to repair the defective conditions detailed above, Defendants acted unreasonably.

82. As a direct and proximate result of Defendants' breach, the Plaintiff suffered, and continues to suffer, pain, anxiety, annoyance, inconvenience, distress, economic loss, loss of use and property damage, all to his detriment in amounts to be determined at trial.

FIFTH CAUSE OF ACTION
BREACH OF THE STATUTORY WARRANTY OF HABITABILITY
(AGASNT ALL DEFENDANTS)

83. Plaintiff re-alleges and incorporates all prior allegations as though fully set forth herein.

84. Defendants have violated statutes, including, among others, Civil Code §1941, *et seq.*, and Health & Safety Code §17920.3 related to the implied warranty of habitability.

85. Plaintiff repeatedly notified the Defendants, both orally and in writing, of problems with the plumbing, windows, bathroom, flooring, peeling walls, water intrusion, lack of ventilation, and biological contamination. The Defendants failed and/or refused to repair these dangerous and defective conditions within a reasonable time, or at all. Accordingly, Plaintiff is informed and believes, and thereupon alleges, that the Defendants had actual and/or constructive notice of each of the defective conditions described above at all relevant times herein. Despite such notice, Defendants failed to take the steps necessary to repair said conditions at all times relevant herein.

86. Plaintiff paid the Defendants rent during the time she occupied the Premises.

87. Plaintiff did nothing to cause, create or contribute to the existence of the defective conditions stated above. Further, the Premises and the Property, as it existed in its defective and dangerous condition, had no rental value whatsoever as a result of its defective and dangerous condition.

88. As a direct and proximate result of Defendants' breach of the statutory warranty of habitability and their failure to repair the defective and dangerous conditions or have them repaired within a reasonable time or at all, Plaintiff suffered, and continues to suffer, pain, anxiety, annoyance, inconvenience, distress, economic loss, loss of use and property damage, all to his detriment in amounts

1 to be determined at trial.

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3 **SIXTH CAUSE OF ACTION**
4 **NUISANCE**
5 **(AGAINST ALL DEFENDANTS)**

6 89. Plaintiff re-alleges and incorporates all prior allegations as though fully set forth herein.

7 90. Plaintiff, by virtue of his rental of the Premises and the Agreement, had at all relevant
8 times, a property interest in the Premises. DEFENDANTS' conduct in creating and maintaining a
9 nuisance premises in the manner described herein, was injurious to Plaintiff's health, offensive to
10 Plaintiff's senses, and interfered with his comfortable enjoyment of life, personal property, and their
11 interest in the Premises.

12 91. Defendants created and maintained the deficient conditions in the property by failing to
13 correct or repair defective conditions. Defendants' conduct in maintaining the Premises and Property in
14 a hazardous, unhealthy and offensive state was grossly negligent and Defendants should have known that
15 regular upkeep would be required to maintain the habitability of the Premises.

16 92. As a direct, legal and foreseeable result of the conduct of Defendants, as set forth above,
17 Plaintiff suffered special and general damages as set forth herein.

18 93. The Defendants' conduct, as set forth herein, was grossly negligent and through reasonable
19 and necessary inspections it would have been readily apparent that the injury, discomfort, and annoyance
20 would unavoidably result to Plaintiff.

21 **SEVENTH CAUSE OF ACTION**
22 **BREACH OF THE COVENANT OF QUIET ENJOYMENT**
23 **(AGAINST ALL DEFENDANTS)**

24 94. Plaintiff re-alleges and incorporates herein all prior allegations as though fully set forth
25 herein.

26 95. By the acts and omissions described above, Defendants interfered with, interrupted, and
27 deprived Plaintiff of the full and beneficial use of the Premises and disturbed Plaintiff's peaceful
28 possession of the Premises.

1 96. These acts of interference, interruption, deprivation, and disturbance by Defendants
2 amount to a breach of the covenant of quiet enjoyment implied in all rental agreements, and codified in
3 California Civil Code §1927.

4 97. As a direct and proximate result thereof, Plaintiff has suffered, and continues to suffer,
5 pain, discomfort, annoyance, inconvenience, anxiety, economic loss, loss of use, and mental anguish, all
6 to his detriment in amounts to be determined at trial.

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8 **EIGHT CAUSE OF ACTION**
9 NEGLIGENCE
10 (AGAINST ALL DEFENDANTS)

11 98. Plaintiff re-alleges and incorporates all prior allegations as though fully set forth herein.

12 99. By reason of the Agreement and the landlord-tenant relationship between Defendants and
13 Plaintiff, Defendants, and their agents, owed Plaintiff a duty to exercise reasonable care in the ownership,
14 management, inspection, and control of the Property, which included a statutory duty to comply with all
15 applicable laws governing Plaintiff's rights as a tenant and all duties listed below. Defendants also owed
16 a duty to exercise reasonable care in maintaining the Property and Premises free of defects and/or hazards
17 and in inspecting the Property and Premises for same, so as to preclude any person, including Plaintiff,
18 from unreasonable risk of harm. Defendants also owed a duty to warn Plaintiff of any potential and non-
19 obvious hazards.

20 100. The duty to exercise reasonable care owed by Defendants, and each of them, to Plaintiff
21 also included, but was not limited to the following duties: the duty to provide Plaintiff with legal,
22 tenantable housing, fit for human occupancy; the duty to refrain from interfering with Plaintiff's full use
23 and quiet enjoyment of the rented residence; and the duty to comply with all applicable state and local
24 laws governing Plaintiff's rights as a tenant.

25 101. Defendants, by the acts and omissions alleged herein, were negligent and careless and
26 thereby breached said duties. Defendants also breached their duties to Plaintiff by failing to timely repair
27 the Property and Premises properly, to maintain the Property and Premises free of defects and hazards,
28 and to warn Plaintiff of the potentially hazardous nature of the conditions found at the Property and

1 Premises.

2 102. As a direct and proximate result of these breaches of duty by Defendants, Plaintiff suffered
3 actual and special damages as herein alleged.
4

5 **NINETH CAUSE OF ACTION**
6 **NEGLIGENT VIOLATION OF STATUTORY DUTY**
7 **(AGAINST ALL DEFENDANTS)**

8 103. Plaintiff re-alleges and incorporates all prior allegations as though fully set forth herein.

9 104. Defendants violated their duty of due care to Plaintiff and violated their statutory duties to
10 Plaintiff by violating certain housing, building and fire codes, local ordinances and state statutes, including
11 but not limited to: Civil Code § 1941.1 (a) (1), (2), (3) (7), and Health & Safety Code §§ 17920.3, *et seq.*

12 105. At all times relevant, Plaintiff belonged to the class of persons for which these statutes were
13 designed to offer protection. The harm that has befallen Plaintiff is of the type these statutes were designed
14 to prevent.

15 106. As a proximate result of Defendants' negligent violation of statutory duty, as set forth
16 above, Plaintiff has suffered actual, special and general damages as set forth herein.

17 **TENTH CAUSE OF ACTION**
18 **INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**
19 **(AGAINST ALL DEFENDANTS)**

20 107. Plaintiff re-alleges and incorporates all prior allegations as though fully set forth herein.

21 108. The acts of Defendants, as heretofore alleged, were extreme and outrageous and done with
22 conscious disregard for the rights of Plaintiff. Plaintiff suffered extreme emotional distress as a result of
23 Defendants' harassment and knowing, intentional and willful failure to correct the defective conditions of
24 the Premises. Defendants made promises to Plaintiff that they would perform repairs and, after ignoring
25 Plaintiff for months, refused to adequately repair the defects. Defendants knew that Plaintiff was
26 susceptible to additional discomfort as a result of the conduct described, knew that the conduct adversely
27 affected him, had the wherewithal to avoid the conduct, yet consciously failed and refused to do so.
28

///

ELEVENTH CAUSE OF ACTION
BREACH OF CONTRACT

109. Plaintiff re-alleges and incorporates all prior allegations as though fully set forth herein.

110. Defendants failed and continue to fail to perform the terms and conditions of the written Agreement by which they are bound. Defendants breached the Agreement by, among other things, failing to provide a habitable and safe living environment; failing to maintain and repair the Premises; preventing quiet enjoyment by Plaintiff of the Premises; wrongfully demanding and collecting rent notwithstanding uninhabitable conditions; reducing housing services with respect to appliances and habitable space without a corresponding reduction in services; and breaching numerous Agreement provisions.

111. Plaintiff performed all duties, conditions and obligations that were required of him pursuant to the terms of the Agreement. The breaches of the Agreement by Defendants herein alleged are the direct and proximate cause of damages to Plaintiff as described herein.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff prays for judgment as follows:

1. For general damages according to proof;
2. For special damages according to proof;
3. For punitive damages allowed by law;
4. For treble damages as allowed by law;
5. For restitution as allowed by law;
6. For statutory damages as allowed by law;
7. For attorney's fees allowed by law and contract;
8. For the costs of suit; and
9. For such other and further relief as the Court deems just and proper.

JURY TRIAL DEMAND

WHEREFORE, Plaintiff hereby demands trial by jury for all causes of action, claims or issues triable as a matter of right to a jury.

By: _____

Eric L Lifschitz, Esq.
Attorney for Plaintiff